# DOCUMENT 1 — RESEARCH MEMORANDUM (REVISION 5, FINAL)

*Revision 5 adds § 23 and revises §§ 19, 20, and 22. Revision 4 added §§ 17–21; Revision 3 added §§ 13–16; the rest is carried over from Revision 2. Earlier versions are in the `archive-rev*/` folders.*

**Scope.** Only the research the final bill relies on. Comparative-state detail, international material on "parental alienation," and S.B. 174's internal architecture are in `archive-rev1/01-Research-Memorandum.md`. They are not repeated here.

**Verification.** All statutes and rules were checked on codes.ohio.gov or the Supreme Court of Ohio's site on 4 October 2026, unless marked. Primary texts are in `sources/`.

Labels: - **V** verbatim primary text was read. - **[C]** a well-established citation that was not re-read in this revision.

## § 1. Status of parents

**R.C. 3109.03** V (eff. 1991): "When husband and wife are living separate and apart from each other, or are divorced, and the question as to the parental rights and responsibilities … is brought before a court …, they shall stand upon an equality …, so far as parenthood is involved." - *Use:* Ohio's equality rule already exists, but only for spouses. The bill extends it with one phrase.

**R.C. 3109.042** V (eff. 23 March 2015, S.B. 207, 130th G.A.; not amended since): - (A) "An unmarried female who gives birth to a child is the sole residential parent and legal custodian of the child until a court of competent jurisdiction issues an order designating another person …." - (B) A rape or sexual battery bar, written only for "an unmarried female."

**R.C. 3109.12** V: a father whose paternity is final "may file a complaint requesting that the court … grant him reasonable parenting time rights." The court "may grant" them on best interest.

**R.C. 3109.04(L)(5)–(6)** V: under a shared parenting order, "both parents have 'custody of the child'" and "each parent, regardless of where the child is physically located or with whom the child is residing at a particular point in time, … is the 'residential parent,' the 'residential parent and legal custodian,' or the 'custodial parent.'" - *Use:* **This is the status/schedule distinction, already in Ohio law.** The bill's equal-status mechanisms produce this status, and the schedule stays a separate term.

**R.C. 3109.04 effective date** V: 9 June 2011 (H.B. 121, 129th G.A.). It has not been amended since.

**No prior Ohio bill fixed 3109.042(A).** - H.B. 508 and H.B. 14 amended only its cross-references. - S.B. 174 as passed carries the rule forward as proposed R.C. 3109.0424. - The House substitute leaves it alone.

## § 2. Allocation, modification, and the existing-order mechanism

**R.C. 3109.04(A)(1)–(2), (D)(1), (G)** V. Shared parenting is available only if a parent files a pleading or motion *and* a plan. Otherwise the court "shall allocate … primarily to one of the parents." The default is sole custody.

**R.C. 3109.04(E)(1)(a)** V. Modification of a prior allocation requires a change in circumstances, plus best interest, plus a retention rule favoring the existing residential parent.

**R.C. 3109.04(E)(1)(b)** V. One or both parents under a decree that is not shared parenting "may file a motion requesting that the prior decree be modified to give both parents shared rights and responsibilities." That motion is gated by (E)(1)(a) and by a (G) plan. - *Use:* **the existing vehicle for converting sole custody to shared status.** New (E)(1)(c) is the same motion without the two gates.

**R.C. 3109.04(E)(2)(b)** V. Terms of a shared parenting plan may be modified on best interest alone.

***Fisher v. Hasenjager*, 116 Ohio St.3d 53, 2007-Ohio-5589** [V, syllabus via the Supreme Court]. Changing the designation of residential parent and legal custodian, even under a shared parenting decree, requires a change in circumstances under (E)(1)(a). - *Use:* this is why equal status needs its own statutory route.

***Braatz v. Braatz*, 85 Ohio St.3d 40 (1999)** [V, syllabus]. Modification of parenting time (visitation) is governed by R.C. 3109.051(D). The movant "need make no showing that there has been a change in circumstances." - *Use:* a parent restored to equal status can already seek more time on best interest alone. The bill opens no new schedule litigation, which is the floodgate answer.

**R.C. 3109.04(C)** V. The court "shall consider" convictions for, or adjudications as perpetrator of, child abuse, neglect, domestic violence, and family sexually oriented offenses "against naming that parent the residential parent and against granting a shared parenting decree." - *Use:* the existing list to which the presumption's exception points.

**R.C. 3109.04(F)(1)(f), (i)** V. Best-interest factors: - (f) the parent "more likely to honor and facilitate court-approved parenting time"; - (i) whether a parent "has continuously and willfully denied the other parent's right to parenting time in accordance with an order of the court." - *Use:* (i) already makes interference a custody factor, so the civil "interference" tort is unnecessary.

**R.C. 3109.401** V (eff. 1 Jan 2025 per page footer). Ohio's existing policy findings, including that "the relationship between a child and each parent should be fostered unless inconsistent with the child's best interests." (A)(4)(e) says "a court should not impose any type of standard schedule unless …." - *Use:* the bill's policy section is unnecessary, and (A)(4)(e) needs a conforming "subject to 3109.044."

## § 3. Temporary orders

**R.C. 3109.043** V (eff. 2006). A temporary allocation may be made "without oral hearing and for good cause shown" on affidavit. The statute itself gives no hearing guarantee.

**Civ.R. 75(N)(2)** V (as amended 1 July 2023). "Upon request, in writing, after any temporary … order allocating parental rights and responsibilities … is journalized, the court shall grant the party so requesting an oral hearing within twenty-eight days to modify the temporary order." A request does not "change the allocation … until the order is modified by journal entry after the oral hearing." - *Use:* the 28-day clock is existing Ohio procedure, not S.B. 174's invention. The statute mirrors it so that it also reaches juvenile-court cases (Civ.R. 75 governs domestic relations), which is where unmarried parents litigate. The rule's last sentence is itself an "only a court changes an order" rule.

**S.B. 174 proposed R.C. 3109.0411** [V, Rev. 1]. "[T]he court shall not draw any presumptions from a temporary parenting order." This is borrowed for 3109.043(D).

## § 4. Guardians ad litem and parenting coordinators

**Renumbering.** The Rules of Superintendence were restructured effective 1 July 2026: - Former Sup.R. 48–48.07 (GALs) is now **Sup.R. 8.00–8.07**. - Former Sup.R. 90–90.13, later 16.60–16.66 (parenting coordination), is now **Sup.R. 6.40–6.46**, with definitions in Sup.R. 6.00.

Cite the new numbers, perhaps adding "formerly …". The bill avoids rule numbers altogether by referring to "the Rules of Superintendence."

**GAL role.** - **Sup.R. 8.01(C)** V: a GAL is "an individual appointed to assist a court in its determination of the best interest of a child." - **Sup.R. 8.03(A)** V: the GAL must "[p]rovide the court recommendations," maintain independence, have "no ex parte communications with the court regarding the merits," and "[b]e available to testify." 8.03(D) lists the investigative duties: observe the child with each parent, interview the child, make home visits, and so on. - **Sup.R. 8.06** V: - (A)(3): reports "shall address relevant issues, **but shall not be considered determinative**." - (C)(1): the final report is due at least seven days before the final hearing. - (C)(3): the court may consider the recommendation "only when the report or a portion of the report has been admitted as an exhibit."

**Appointment.** - **R.C. 3109.04(B)(2)(a)** V: when the court interviews a child, it "may and, upon the motion of either parent, shall appoint a guardian ad litem." - **R.C. 2151.281(B)(1), (I)** V: mandatory in abuse and neglect cases, where the GAL performs "investigation, mediation, monitoring court proceedings."

**Recommendations are not binding** V: - *R.E. v. H.F.*, 2017-Ohio-2815, ¶ 18 (6th Dist.): "[a] trial court is not bound by the guardian's recommendation." - *Tellis v. Tellis*, 2021-Ohio-1976, ¶ 17 (2d Dist.). - *Michael v. Michael*, 2021-Ohio-992 (9th Dist.).

**Cross-examination.** - *In re Hoffman*, 97 Ohio St.3d 92, 2002-Ohio-5368 [V, syllabus]: a right to cross-examine the GAL "concerning the contents of the report and the basis for a custody recommendation." It is limited to **permanent custody** proceedings. Sup.R. 8 contains no cross-examination text. - *Use:* § 3109.045(C) extends the *Hoffman* right to custody cases under Chapter 3109. A GAL whose recommendation is evidence should be examinable like any other witness. Compare R.C. 3109.04(C), which already subjects a court-ordered investigator "to cross-examination by either parent."

**Parenting coordination.** - **Sup.R. 6.00(I)** V: "a child-focused dispute resolution process … to assist parties in **implementing** a parental rights and responsibilities … order," including "decision-making." - **Sup.R. 6.42(B)** V: a court "shall not order parenting coordination to determine": - "[c]hanges in the designation of the residential parent or legal custodian"; - "[c]hanges in the school placement of a child, in the case of shared parenting"; - "**[s]ubstantive changes in parenting time**"; - support matters. - **Sup.R. 6.45(B)** V: the appointment order must state the scope of authority and the "procedures for objections." **The state rule does not say when a coordinator's decision binds, or how it is reviewed.** That is left to local rules. - **No Ohio statute** addresses parenting coordinators. R.C. 3109.052 covers mediation and 3109.053 covers classes and counseling. - *Use:* § 3109.045(D) codifies Sup.R. 6.42(B) and fills the review gap.

**Delegation case law** V. Supportive, but not a settled per se rule:

| Case | Holding |
|---|---|
| *Weisgarber v. Weisgarber*, 2009-Ohio-20, ¶ 67 (5th Dist.) | "The trial court may not delegate judicial authority to another entity absent the color of authority." Reversed an order requiring GAL approval before filing motions. |
| *Huffman v. Huffman*, 2002-Ohio-6031, ¶ 33 (10th Dist.) | "[A] judge cannot delegate his or her judicial authority." *Weisgarber* miscites it as "Hoffman." |
| ***Gregory v. Gregory*, 2019-Ohio-5210, ¶¶ 18, 26 (1st Dist.)** | A coordinator's authority "is limited to ancillary parenting issues," and "[d]ue process requires meaningful and independent judicial review of a parenting coordinator's decision." Reversed where the decision was immediately effective, with no independent review. |
| *In re K.R.H.*, 2026-Ohio-583, ¶ 22 (2d Dist.) | Reversed an order leaving father's parenting time to a therapist's discretion. The ground was the record and abuse of discretion, not an express delegation rule. |
| *Weinsziehr v. Lehman*, 2026-Ohio-2760, ¶ 17 (4th Dist.) | **Adverse.** A delegation challenge to a provider's "exclusive authority to determine mother's visitation" was unpreserved, and the order was affirmed. |

**Could not verify:** any Ohio holding that "parenting time as recommended by the GAL" or "at the counselor's discretion" is per se unlawful delegation.

**Conclusion.** The principle exists, but it is scattered and inconsistently applied, and the issue can be lost by failing to preserve it (*Weinsziehr*). That is the strongest argument for putting it in a statute.

## § 5. Child-abuse investigations, adjudications, and their timelines

**Agency rules were renumbered.** Children-services rules moved from 5101:2-xx to **5180:2-xx** (Department of Children and Youth). Cite the 5180 numbers.

**Ohio Adm.Code 5180:2-36-03(V)** V (eff. 1 Sept 2024). Within "sixty calendar days from the date the PCSA screened in the referral," the agency must complete its contacts, "[c]omplete the report disposition," and reach a case decision. There is no extension provision in the current rule. (Z)(6) requires notice of the disposition to a non-custodial parent with residual rights.

**Ohio Adm.Code 5180:2-1-01** V defines the dispositions: - "Substantiated" means "an admission …; an adjudication …; **or other forms of confirmation deemed valid by the PCSA**." - "Indicated" means "circumstantial or other isolated indicators … lacking confirmation." - "Unsubstantiated" means "the assessment/investigation determined no occurrence." - *Use:* agency dispositions are administrative labels. They are not adjudications. This is why § 3109.046 does not treat them as "resolution."

**R.C. 2151.28(A)(2)** V. The adjudicatory hearing is held within 30 days of the complaint. It may be continued for counsel (10 days) or for service or "any necessary evaluation," but "not … later than sixty days after the date on which the complaint was filed."

**R.C. 2151.35(B)(1)** V (eff. 2021). The dispositional hearing "shall not be held more than ninety days after the date on which the complaint … was filed." For good cause, one continuance "shall not exceed forty-five days." If the deadline is missed, the court "shall dismiss the complaint without prejudice." - *Use:* **the structural model for § 3109.046.** Ohio already imposes a deadline on deciding abuse allegations, allows a single capped extension, and attaches a consequence. Its 90 days is the model for the 90-day hearing on request. Its single capped extension is the model for the single continuance.

**R.C. 2151.353(G); 2151.415(D)** V. Temporary custody ends after one year. The court may grant up to two six-month extensions, with a two-year cap. - *Considered and rejected* as the continuance analog: those extensions measure reunification progress, not fact-finding.

**R.C. 2945.71** V. Speedy trial: 90 days for a first- or second-degree misdemeanor; 270 days for a felony. - *Use:* the criminal case on the same allegation will normally finish well inside 36 months, so a criminal case is not a reason for serial continuances.

**R.C. 2945.72(D), (H)** [V, Rev. 3]. Speedy-trial time is extended by "[a]ny period of delay occasioned by the neglect or improper act of the accused" and by "[t]he period of any continuance granted on the accused's own motion." - *Use:* the model for § 3109.046(D)(3), under which the restricted parent's own delay is not counted.

**R.C. 3113.31** [C]. An ex parte domestic-violence protection order requires a full hearing within 7 or 10 court days. Protection orders have their own procedure and are excluded from § 3109.046.

## § 6. Good-faith and false reports

**R.C. 2151.421(H)** V (eff. 30 Sept 2025, H.B. 96). - (H)(1)(a): immunity for participating in mandatory reports and in permissive reports "in good faith." - (H)(2): fees where a report "was not in good faith." - (H)(3): a knowingly false (B) report is a violation of R.C. 2921.14.

**R.C. 2921.14** V: "No person shall knowingly make or cause another person to make a false report under division (B) of section 2151.421 …." It is a first-degree misdemeanor. By its terms it reaches only permissive (B) reports. - *Use:* the crime of false reporting already exists, so the bill adds no new offense, only civil consequences in the custody case.

**KRS 403.270(4)(h)** [V, Rev. 1]: a finding that a party "maliciously made an intentionally false allegation … which the party knew had no basis in fact." This is the triple-guard model.

**KRS 403.270(4)(l)** [V, Rev. 1, eff. 15 July 2026]. The "allow … contact" factor may not be used against a party whose co-parent committed domestic violence against that party. This is the model for § 3109.046(F)'s last sentence.

## § 7. Enforcement

**R.C. 2705.031(B)(2)** V (eff. 2012). Any parent with parenting time "may initiate a contempt action for a failure to comply with, or an interference with, the order." Initiation is private; there is no agency or prosecutor initiator, unlike support cases. **There is no hearing deadline.**

**R.C. 2705.05(A)** V. Graduated contempt penalties: - first offense: up to $250 and 30 days; - second: up to $500 and 60 days; - third or subsequent: up to $1,000 and 90 days. - *Use:* **Ohio already has the escalation ladder.** Revision 1's custom ladder was redundant.

**R.C. 3109.051(K)** V (eff. 3 Oct 2023). On contempt, costs and fees "shall" be assessed, but compensatory time "may" be awarded "if … in the best interest of the child."

**Civil contempt standard** [C]: clear and convincing evidence (*Brown v. Executive 200, Inc.*, 64 Ohio St.2d 250 (1980)). The bill does not change it.

**Comparative make-up-time models: - Tex. Fam. Code § 157.168(a)** [V, Rev. 1] (2025): "shall order additional periods … of the same type and duration," unless good cause is shown. § 156.107: a third prior contempt finding is a material change. § 157.167(e): no waiver of fees. - **MCL 552.642** V: make-up time of the "same type and duration," "taken within 1 year," with the wronged parent choosing the time. MCL 552.511b and 552.641–.644: Michigan's Friend of the Court must act on a written parenting-time complaint (14 days to serve it) and may start contempt. *Used as Option 4.* - **S.B. 174 House substitute** [V, Rev. 1]: compensatory time becomes mandatory on a finding of unreasonable interference. - **H.B. 14 as re-referred** V: - 3109.0491 requires a hearing "not later than twenty-eight days" after an interference motion; - 3109.0493 makes compensatory time and fees mandatory; - 3109.0481 sanctions an intentionally false accusation, with make-up time. - H.B. 14 contained **no criminal provision**.

## § 8. Criminal interference and *Toledo v. Parra*

**R.C. 2919.23** V (eff. 6 April 2023, H.B. 281). "No person, knowing the person is without privilege to do so or being reckless in that regard, shall entice, take, keep, or harbor" a child "from the parent, guardian, or custodian." It is a first-degree misdemeanor, and a fifth-degree felony on removal from the state or a prior conviction. (C) supplies affirmative defenses.

***Toledo v. Parra*, 6th Dist. Lucas No. L-12-1261, 2013-Ohio-3182** V: - ¶ 9: a custodial parent can commit the offense. - ¶ 12: withholding court-ordered time "constitutes acting with knowledge that she was without privilege …. This may be criminally prosecuted." - ¶ 17: no "authority that mandates deference" to domestic relations contempt. - ¶ 18: proving knowledge of absence of privilege "based on the interpretation of the order of another court may implicate prosecutorial discretion," but "[t]here is nothing in the law … that dictates dismissal."

***State v. Sprinkle*, 12th Dist. No. CA2006-08-101, 2007-Ohio-4967** [V, Rev. 3]: - ¶ 40: the elements are "knowing she was without privilege to do so or was reckless in that regard, took, kept, or harbored." - ¶¶ 41–42: it rejects the argument that 2919.23 does not apply to a parent under a shared parenting plan. - It quotes *State v. Brickles* (2d Dist., 1999 WL 957643): "a plain reading of the statute 'does not exclude parents with visitation from its reach.'" - It cites *State v. West*, 2002-Ohio-2114 (4th Dist.).

*Brickles* is cited in *Sprinkle* as "Montgomery App. No. 98-CRB-1054." Revision 2's "No. 17526" should be checked against the original. No contrary Ohio appellate decision was located.

*Use:* - The offense already reaches the conduct. The bill adds one division to 2919.23 rather than a new section. - ¶¶ 17–18 are codified as the "not a civil matter" rule. - ¶ 18's ambiguity concern is codified as the reasonable-reading defense.

## § 9. Prosecutorial discretion and referral

***State ex rel. Master v. Cleveland*, 75 Ohio St.3d 23, 27 (1996)** V: "A prosecuting attorney will not be compelled to prosecute a complaint except when the failure to prosecute constitutes an abuse of discretion. … [T]he decision whether to prosecute is discretionary, and not generally subject to judicial review."

***State ex rel. Murr v. Meyer*, 34 Ohio St.3d 46 (1987)** V. Refusal to prosecute was within discretion.

***State ex rel. Rankin v. State*, 2025-Ohio-4483** V (1 Oct 2025, unanimous; arose from an interference-with-custody matter): - "R.C. 2935.09 does not mandate prosecution of all offenses charged by affidavit." - "[A] prosecutor has no clear duty to prosecute an offense alleged in a [private-citizen] affidavit."

**R.C. 2935.09(D), 2935.10** V. A private citizen may file an affidavit with a reviewing official, who may issue process or refer the matter to the prosecutor. This is preserved.

**R.C. 2935.01(C)** V. "Prosecutor" includes the county prosecuting attorney and, in courts below common pleas, "the village solicitor, city director of law, or similar chief legal officer." The bill uses this definition.

**Existing ministerial notice and confer duties on prosecutors** V: - R.C. 2930.06(A) (confer with the victim before dismissal or a plea); - R.C. 2930.05(B)(2) ("shall inform the victim" when electing not to file a bond motion); - Ohio Const. art. I, § 10a (Marsy's Law notice and confer rights).

**No existing Ohio statute** requires notice of a pre-charge decision not to prosecute. This is "not found," not "confirmed absent." The bill's declination notice is new, but of a familiar type.

## § 10. Legislative history: what H.B. 508 and H.B. 14 did, and why they failed

**H.B. 508 (134th G.A.)** V: - **History.** Introduced 8 Dec 2021; referred to House Civil Justice 15 Feb 2022; six hearings; substitute l_134_1415-6 adopted 10 May 2022; never reported. - **Presumption.** Equal time and decision-making, rebuttable "only if the court finds by clear and convincing evidence … that an equal parenting time arrangement would be detrimental" (3109.0420(B) as introduced). The substitute lowered this to a preponderance. - **Existing orders.** "[R]emain in effect but shall be enforced and modified in accordance with" the new sections (3109.0482). Modification still required detriment plus a change in circumstances. - **Guidelines.** Statewide standard parenting-time guidelines by rule (3109.0466(B)). - **Data.** An annual overnight-allocation data report (3109.0485(A)). - **GALs.** A recommendation may not be the court's "sole basis" (3109.0421(D)).

**H.B. 14 (135th G.A.)** V: - **History.** - Introduced 15 Feb 2023; referred to Civil Justice 16 Feb 2023; re-referred to Families and Aging 21 Feb 2023. - Hearings on 7, 14, and 21 March 2023. - Substitute l_135_1898 accepted 28 Nov 2023 (preponderance; "substantially equal"; a nursing-infant exception). - Hearing on 14 May 2024. - Never reported; died 31 Dec 2024. - **Provisions.** - Same existing-order device as H.B. 508 (3109.0485). - 28-day interference hearing (3109.0491); mandatory compensatory time and fees (3109.0493). - False-accusation sanction (3109.0481). - The same "sole basis" GAL proviso. - No criminal provision. - Left 3109.042(A) intact.

**Opposition** [V, Rev. 1; OSBA testimony 21 March 2023]: - the clear-and-convincing burden and its costs ($5,000–$10,000 evaluations; GALs); - "detrimental" as the test; - one size fits all; - undermining judges; - the floodgate ("financial incentive to litigate"); - the burden on domestic-violence victims (ODVN).

**What the history teaches:** - Size and the burden of proof were the attackable features. - Neither bill touched the unmarried-parent rule. - Neither bill dealt with who, other than the judge, actually controls parenting time in practice.

**Mark Ludwig** V (Americans for Equal Shared Parenting, St. Louis): - **H.B. 508 proponent** (3/8/2022): the "'winner take all' system"; children "feel like a visitor." - **S.B. 174 opponent** (10/8/2025): the bill "essentially guarantees that one parent is relegated to 'every other weekend.'" He asked for: - "[a] presumption of equal or significantly equal time … in fit cases"; - "[c]lear, mandatory findings that a court must explain in writing every time it departs"; - "[i]ndependent legislative drafting." - **Gaps.** No Ludwig testimony on H.B. 14, GALs, enforcement, or false allegations was found. - **What the bill takes from him:** the presumption, the written findings, and the refusal to make every other weekend a norm. These are §§ 3109.044(A), (E)(1), and (E)(3).

## § 11. S.B. 174: current status

V (Ohio Legislature status, LIS meeting records, Senate Journal): - Passed the Senate 12 Nov 2025, **29–2** (Senate Journal p. 1248; Senators Reynolds and Roegner voted no). Senate Judiciary had reported it 7–0 on 5 Nov 2025. - Referred to House Judiciary 19 Nov 2025. - **Substitute l_136_0493-6 accepted 13 May 2026.** - Hearings 20 May and 3 June 2026. A 10 June 2026 agenda listed "Poss. Vote / Poss. Am." No report is recorded; the 10 June minutes are unposted. - No meeting has been scheduled since. **Not reported as of 4 October 2026.** - Dies 31 December 2026 unless enacted.

## § 12. Comparative presumptions (enacted)

| State | Citation | Year | Rebuttal | Exceptions |
|---|---|---|---|---|
| Kentucky | KRS 403.270(2), 403.315 | 2018; am. 2026 | Preponderance | DVO; reverse presumption |
| Arkansas | Ark. Code § 9-13-101 | 2021 | Clear and convincing | Agreement; abuse |
| West Virginia | W.Va. Code § 48-9-102a | 2022 | Preponderance | — |
| Florida | Fla. Stat. § 61.13(2)(c) | 2023 | Preponderance | — |
| **Missouri** | **RSMo 452.375** (S.B. 35) | **2023** (eff. 28 Aug 2023) | **Preponderance** | **Agreement; a pattern of domestic violence (RSMo 455.010)** |

Missouri [V, statute text; history via secondary sources] was missing from Revision 1. Whether its presumption applies to modifications was not verified.

**Floor model:** Minn. Stat. § 518.175 subd. 1(g) [Q, Rev. 1], a rebuttable 25 percent minimum.

**Ohio's own unit:** R.C. 3119.051 V, 90 overnights per year.

## § 13. Administrative enforcement: Ohio law (Revision 3)

**CSEA structure** V: - **R.C. 3125.10:** "Each county shall have a child support enforcement agency." It may be "a private or government entity designated under section 307.981." - **R.C. 3125.11:** the CSEA is the local Title IV-D agency. - **R.C. 3125.03:** the program must locate absent parents "for purposes of establishing and enforcing orders allocating parental rights and responsibilities … and establishing and enforcing parenting time orders." - *Use:* CSEAs already have a statutory role touching parenting-time orders. - **R.C. 3125.13:** CSEAs may contract out "other administrative duties."

**The administrative-determination-then-court-entry model** V: - **R.C. 3119.63(C):** notice that the revised amount "will be submitted to the court for inclusion in a revised court child support order unless the obligor or obligee requests an administrative hearing … within fourteen days." - **R.C. 3119.65:** if no court hearing is requested, "the court shall issue a revised court child support

order.” - **R.C. 3119.66:** if one is requested, “the court shall schedule and conduct a hearing.” - **R.C. 3111.49:** an administrative parentage order is “final and enforceable by a court” unless an action is brought “within fourteen days.” - *Use:* **the exact template for § 3109.047(F).**

**Contempt is judicial** V: - *Hale v. State*, 55 Ohio St. 210 (1896), syllabus: “The general assembly is without authority to abridge the power of a court … to punish contempts summarily, such power being inherent and necessary to the exercise of judicial functions.” - *Zakany v. Zakany*, 9 Ohio St.3d 192 (1984): inherent power “includes the authority to punish the disobedience of the court’s orders with contempt proceedings.” - *State v. Local Union 5760*, 172 Ohio St. 75 (1961): the same inherent-power rule. - *Use:* the agency may initiate contempt but may not find it or punish.

**Judicial power** V. Ohio Const. art. IV, § 1: “The judicial power of the state is vested in” the courts.

**Nondelegation** V. *Matz v. J.L. Curtis Cartage Co.*, 132 Ohio St. 271 (1937): the lawmaking power “cannot be delegated,” though administrative authority under standards is valid. § 3109.047 supplies fixed standards: a clear order, the time missed, the excuse list, and same-type-and-duration make-up time.

**Evidence** V. Ohio Evid.R. 803(8) covers records “setting forth (a) the activities of the office or agency, or (b) matters observed pursuant to duty imposed by law.” Unlike the federal rule, it has **no clause for investigative findings**. - *Use:* do not legislate the admissibility of agency findings; file the record instead.

**Initiating contempt** V. R.C. 2705.031(B)(1) already lets “the child support enforcement agency” initiate support contempt in IV-D cases. (B)(2) has no equivalent for parenting time.

## § 14. Administrative enforcement: other states (Revision 3)

**Michigan Friend of the Court** V. The Friend of the Court is an “employee of the circuit court … under the direction and supervision of the chief judge” (MCL 552.503). - It acts on written complaints (552.511b; 14 days to serve the complaint). - It applies make-up time (552.642): same type and duration, within one year, chosen by the wronged parent. Failure to respond within 21 days counts as agreement. - It starts contempt (552.644). - *A court agency, not an executive one.*

**Minnesota parenting time expeditor** V. Minn. Stat. 518.1751: - It may “make a determination as to whether the existing parenting time order has been violated.” - Its decisions are “binding … unless vacated or modified by the court.” - A party “may not be required” to use it if domestic abuse is claimed.

**Not researched in Revision 3** (the research agent ended early): Oregon, Indiana, Arizona, Utah, and Texas access-and-visitation programs. Only partial texts were saved (`sources/rev3_or_*`, `rev3_in_*`, `rev3_az_*`).

## § 15. Presumptions on modification (Revision 3)

| State | Modification threshold | Presumption on modification? |
|---|---|---|
| **Kentucky** | Change in circumstances (KRS 403.340(3)) | **Yes.** KRS 403.340(5): "if the court orders a modification … there shall be a presumption, rebuttable by a preponderance of evidence, that it is in the best interest of the child for the parents to have joint custody and share equally in parenting time" |
| **Florida** | "[S]ubstantial and material change" (2023 H.B. 1301 deleted "unanticipated") | The presumption sits in § 61.13(2)(c), the general standard |
| **Missouri** | Change in circumstances (RSMo 452.410). Joint-custody modifications must be "in accordance with section 452.375" | Through 452.375 |
| **West Virginia** | "[S]ubstantial change" not anticipated (§ 48-9-401) | Not determined |
| **Ohio (current)** | None for parenting time (*Braatz*); change in circumstances for status (*Fisher*) | No presumption |

**Floodgate data:** not located. No study of filing volume after enactment in Kentucky, Florida, Missouri, West Virginia, or Arkansas was found. Searching ended early.

**Floors** V. Minn. Stat. 518.175 subd. 1(g): "a rebuttable presumption that a child must receive a minimum of at least 25 percent of the parenting time with each parent," measured by overnights or an equivalent. No enacted presumption state (Kentucky, West Virginia, Missouri, Florida) has a numeric floor.

## § 16. Federal funding (Revision 3)

**Title IV-D** [S, secondary: Florida Senate analysis, OCSE materials]. "IV-D federal matching funds are unavailable to reimburse costs to assist with parenting time orders."

**Access and Visitation grants** (42 U.S.C. 669b) [S]. They may fund "visitation enforcement (including monitoring, supervision and neutral drop-off and pick up)."

**Precedent for a IV-D agency handling parenting plans** [S]. Florida, Fla. Stat. 409.25633 (2017), lets its IV-D agency incorporate *agreed* parenting plans into administrative support orders.

**Not verified:** - the controlling CFR provision; - Ohio's current Access and Visitation grant amount and which Ohio agency administers it.

## § 17. Federal law on child support terminology (Revision 4)

**42 U.S.C. 659(i)(2)** V. "Child support" means amounts required to be paid under an order "for the support and maintenance of a child, including a child who has attained the age of majority …, or **a child and the parent with whom the child is living**, which provides for monetary support, health care, arrearages or reimbursement." - *Use:* parental support, defined as support of the child paid to the parent with whom the child lives for the child's household, falls inside the federal definition of child support. - *Use:* so the bill keeps both components legally "child support" (§ 3119.024(A)). That protects withholding, IV-D enforcement, and interstate enforcement.

**42 U.S.C. 659(i)(3)** V. "Alimony" is support "of the spouse (or former spouse)." - *Use:* parental support must **not** be framed as support of the parent. That would push it toward the alimony category, which IV-D enforces only alongside child support.

**42 U.S.C. 666(a)(9)** V (the Bradley Amendment). Each installment is "a judgment by operation of law" and is "not subject to retroactive modification." - **Ohio's counterpart:** R.C. 3119.83–.84 V: no retroactive modification, except from notice of a petition. - *Use:* any accounting remedy must be **prospective**, so the bill uses a credit against *future* accountable child support.

**45 CFR 302.56(c)** V. Guidelines must base the order on the noncustodial parent's income, include a low-income adjustment, address health care, and so on. - *Use:* the bill leaves the guideline total untouched and only labels its components. So 302.56 compliance is unaffected.

**UIFSA, R.C. 3115.102** V. A "support order" is an order "for the benefit of a child, a spouse, or a former spouse, which provides for monetary support." - *Use:* both components are support "for the benefit of a child." The accounting duty is an Ohio term. Whether another state would enforce it on registration is **unverified**; the money obligation itself would be enforced.

## § 18. Title IV-D and parenting time (Revision 4)

**45 CFR 304.20(b)** V. Federal financial participation (FFP) is available for activities "to carry out the State title IV-D plan, including obtaining child support, locating noncustodial parents, and establishing paternity." - Parenting-time enforcement is not among them. - 45 CFR 304.23 V lists the specific exclusions; it does not name parenting time.

**CRS In Focus IF13043** (23 June 2025) [S]: "IV-D federal matching funds are unavailable to reimburse costs to assist with parenting time orders." Incentive funds require an OCSE exemption. - The PARENTS Act (S. 503, 117th Cong.) passed the Senate on 27 July 2021 but was not enacted. - No 2024–2025 enactment was identified.

**42 U.S.C. 669b** V: - **Purposes:** grants "to support and facilitate noncustodial parents' access to and visitation of their children," including "mediation …, counseling, education, development of parenting plans, **visitation enforcement (including monitoring, supervision and neutral drop-off and pickup)**." - **Size:** about $10,000,000 a year nationally, allotted by the number of single-parent children. There is a state match. - *Use:* a real but small source, so the bill says "to the extent legally available."

**Ohio implementation** [S]. Ohio ran a federally funded "Parenting Time Opportunities for Children" (PTOC) pilot in which CSEAs established parenting-time orders alongside new support orders (Fairfield County project narrative). - **Not verified:** Ohio's current 669b allotment, and which Ohio office administers it.

## § 19. Ohio: support and parenting time are kept separate (Revision 4)

**R.C. 3109.05(D)** V: "The court shall not authorize or permit the escrowing, impoundment, or withholding of any child support payment … because of a denial of or interference with a right of parenting time … or as a method of enforcing the specific provisions of any such order dealing with parenting time."

**R.C. 3119.051(B)** V: the only existing linkage, which runs the other way. The court may end the 10 percent parenting-time adjustment if the obligor "has failed to exercise court-ordered parenting time."

**Conclusion:** - Ohio law already forbids using support enforcement as a parenting-time remedy. - Federal IV-D funding is tied to support enforcement, not parenting time. - **No meaningful lawful linkage exists, and the bill invents none.** - **Revision 5:** the parenting remedy is make-up time plus a recorded violation. Revision 4's $100/$250/$500 payments are deleted, so no money judgment exists that could interact with support (§ 3109.047(I)).

## § 20. Costs of mandatory services (Revision 4)

- **R.C. 3109.055(A):** a conciliation order sets "the manner in which the costs … are to be paid."
- **R.C. 3109.04(C):** the court "may tax as costs" the expenses of a court-ordered investigation or evaluation.
- **Sup.R. 8.02(A)(5):** GAL appointment orders state the "rate or amount of compensation," usually paid by the parties.
- **Sup.R. 6.45:** parenting coordinators are court-appointed. Their fees are set locally (not verified statewide).

**Revision 5 additions** V: - **R.C. 3109.052(A):** the court "may … order the parents to pay the cost of mediation," subject to waiver for good cause. - **Sup.R. 8.02(A)(5)–(6):** the GAL appointment order states compensation, installments, and deposits "in allocation of parental rights and responsibilities cases." - **Sup.R. 8.02(I):** unpaid GAL fees may be reduced to a lump-sum judgment or enforced by contempt ((I)(1)); but a court "shall not delay or dismiss a proceeding solely because of the failure of a party to pay" ((I)(2)), and inability to pay "shall not delay any final entry" ((I)(3)). - **R.C. 2151.281(D):** in Chapter 2151 cases the GAL is paid "from the treasury of the county." Abuse, neglect, and dependency cases are outside the bill. - **R.C. 3109.04(B)(2)(a):** the court "may and, upon the motion of either parent, shall appoint" a GAL when it interviews a child.

*Use:* - § 3109.053(B)–(D) now covers GALs, parenting coordinators, mediators, and evaluators as well as classes, counseling, and supervision. Parents may agree to pay. A parent who requests a service may be charged for it. Otherwise a court-required service is free to the non-agreeing

parent. - § 3109.053(C) extends Sup.R. 8.02(I)(2)–(3), which already bar delay over unpaid GAL fees, to every service and to restrictions on parenting time. - Conforming: one "notwithstanding" clause covers 3109.04(C), 3109.052, and 3109.055, so those sections need no separate amendment. - **Rule vs. statute.** Sup.R. 8.02 is a superintendence rule (Ohio Const. art. IV, § 5(A)), not a rule of practice and procedure under § 5(B), so it does not supersede a statute. Cost allocation for parents is substantive. Counsel should confirm (Document 10).

## § 21. Ex parte vs. final protection orders (Revision 4)

**R.C. 3113.31** V: - **Ex parte orders:** an "ex parte hearing on the same day that the petition is filed." The court "may enter any temporary orders," including temporary allocation of parental rights. - **Full hearing deadline:** "within seven court days after the ex parte hearing" for orders under (E)(1)(b) or (c); otherwise within ten court days. - **Duration:** a full-hearing order or consent agreement lasts up to "five years." - **Relation to custody orders:** custody provisions "terminate on the date that a court in an action for divorce … issues an order allocating parental rights."

*Use:* - A **full-hearing** order switches the presumption off as to the respondent while it is in effect. - An **ex parte** order, or a consent agreement without findings, controls by its own terms while in effect but does not itself rebut the presumption. - This resolves the Revision 3 inconsistency.

## § 22. Accounting for child support (revised in Revision 5)

**Other states** [S, except as marked]: - **La. R.S. 9:312** V. On the obligor's motion, "after a contradictory hearing and a showing of good cause," the recipient renders an accounting with "supporting documentation." Frivolous motions shift fees. **It "shall not apply when the recipient … is a public entity."** - **RSMo 452.342** [S]: an accounting on a showing of good cause. - About ten states permit court-ordered accountings [S, not individually verified]. All require a motion and good cause. The bill uses an annual request through the agency instead.

**Revision 5: no fixed percentage.** Revision 4 set the accountable share at the greater of 30 percent or child care, based on USDA child-specific spending (29 percent; USDA, *Expenditures on Children by Families, 2015*). Revision 5 deletes it. No Ohio or federal source supplies such a percentage, and none is legally required: 45 CFR 302.56 governs the *total*, not its labels.

**How the components are designated without a percentage** [V, Ohio worksheet law]: - **Child care** is already a separate figure in the Ohio calculation (R.C. 3119.05(P)), so it is accountable automatically. - **Child-specific deviations** are already separately found under R.C. 3119.22–.23. Examples: 3119.23(A) special needs, (L) educational opportunities, (P) extraordinary child care. Any amount added for a listed expenditure is accountable automatically. - **Anything more** is accountable only by the parents' agreement or by court designation on request, capped at what "the child reasonably requires" for listed expenditures. That is an evidence-based, family-specific figure, the same kind of finding courts make under 3119.23 today. - **The remainder is parental support.** Every order states both amounts. - *Effect:* the total is untouched; the designation uses figures the worksheet already produces; and "accountable" means exactly what

the order says. A court that intends an unaccounted household transfer designates it parental support.

**Where, not what** (carried from Revision 4 review). The obligee shows payee, date, and amount. Card, bank, or payment-app statements, invoices, payment confirmations, or a signed cash statement suffice. No itemizing and no receipts.

## § 23. Revision 5 verification

**S.B. 174** [V, `sources/sb174_status_votes_committee_2026-10-04.txt`]. The status in § 11 was re-checked on 4 October 2026: in House Judiciary, substitute l_136_0493-6 accepted, not reported. The conformity section (now Section 7) is retained.

**UIFSA and the accounting** [V, `sources/rev5_orc_3115.*.txt`]: - **R.C. 3115.604(A):** "the law of the issuing state … governs" (1) "[t]he nature, extent, amount, and duration of current payments" and (3) "[t]he existence and satisfaction of other obligations under the support order." - *Use:* when an Ohio order is registered elsewhere, the components and the accounting duty are Ohio-law "other obligations" that travel with it. The responding state uses its own enforcement procedures (3115.604(C)) and has no FSEA, so the accounting itself runs in Ohio. - **R.C. 3115.603(C):** a registering tribunal "shall recognize and enforce, but may not modify," a registered order. - **R.C. 3115.205:** only the tribunal with continuing, exclusive jurisdiction may modify a child support order. Ohio keeps that jurisdiction while the obligor, obligee, or child lives in Ohio, or on consent. - **R.C. 3115.611(B):** an out-of-state order that Ohio modifies becomes subject to Ohio's modification rules. - *Conclusion:* a credit reduces current payments, which is a modification. So § 3119.024(G) limits the accounting and the credit to orders over which an Ohio tribunal has continuing, exclusive jurisdiction. The risk Revision 4 left open ("would another state enforce the accounting term?") is resolved: Ohio does the accounting; the money obligation is enforced everywhere as now. **No companion bill is needed.**

**The credit and the guidelines** V: - **45 CFR 302.56(g):** a departure from the guideline amount requires "[a] written finding … that the application of the child support guidelines … would be unjust or inappropriate," under criteria the state establishes, stating the guideline amount. - **R.C. 3119.22** V: the Ohio deviation statute. The court journals the guideline amount, the determination, and "findings of fact supporting that determination." - *Use:* a prospective credit lowers the amount due below the guideline for twelve months, so it is framed as a 3119.22 deviation. The statute supplies the state criterion (failure to account), and the entered agency determination is the finding. The guideline amount stays journaled.

**Child's preference at twelve** V: - **R.C. 3109.04(B)(1):** the court "may and, upon the request of either party, shall interview" the child in chambers. **(B)(2)(b):** it first determines the child's "reasoning ability," and may decline to determine wishes because of "special circumstances," with written findings. **(F)(1)(b):** the child's wishes are a best-interest factor. - *Use:* § 3109.044(F) uses the existing interview. It adds only the age (12), the weight (followed unless endangering, impracticable, or not the child's own reasoned view, with written findings), and two guards: no child is required to state a preference, and the court decides. No change to

3109.04 is needed. - *Comparison* [C]: Georgia, O.C.G.A. 19-9-3(a)(5), makes a 14-year-old's selection presumptive and gives weight to the wishes of 11- to 13-year-olds.

**FSEA due process** [V/C]: - *Mathews v. Eldridge*, 424 U.S. 319 (1976) [C]: the process due depends on the private interest, the risk of error, and the government's interest. - The FSEA gives notice, an opportunity to respond, a written decision, a 14-day objection right, and a hearing decided anew within 28 days. Nothing binds until the court enters it. That is the R.C. 3119.63–.66 and 3111.49 model already used for support and parentage. - With money payments deleted, the only administratively computed consequence is make-up time.

**Ohio text and numbering** V. Every section the bill amends or cites was checked against the `sources/` texts retrieved 4 October 2026, including 3109.42 (parent who killed the other parent), 3109.501, 3109.051(D)(10), and 3109.04(C), (F)(1)(f).

## Research gaps remaining after Revision 5

None affects the text. For counsel, LSC, or fiscal staff: - Ohio's current 42 U.S.C. 669b allotment and administering office. - Statewide GAL and parenting-coordinator fee volumes (for the fiscal note). - Floodgate data from other presumption states. - The *Brickles* case number (cited only in research).